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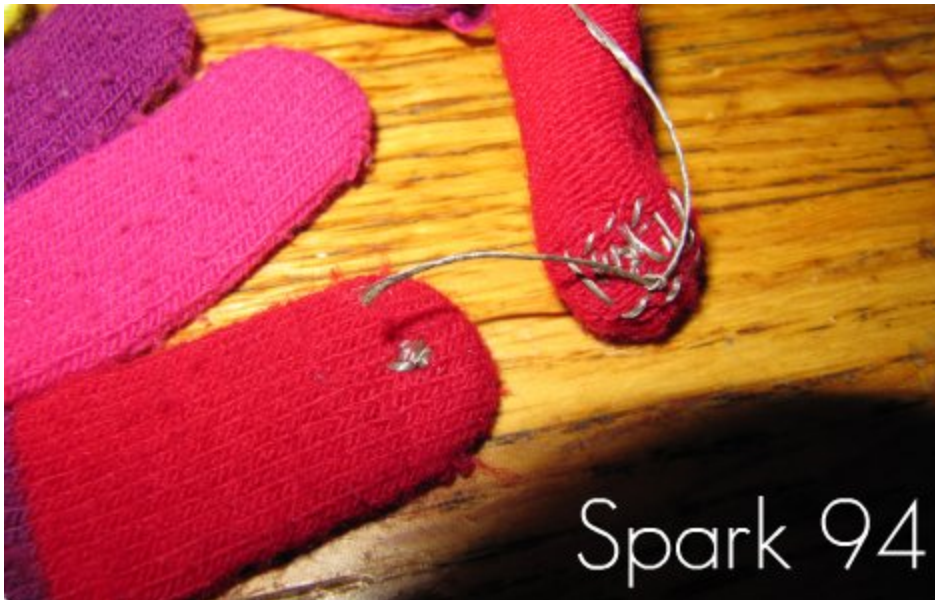
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Spark 94 – December 6 & 8, 2009

Posted by [Dan Misener](#) under [Episodes](#)



On this episode of Spark: Magic technology, glove hackers, and the age of metrics. Click to listen (runs 54:00):



- [Gus Savoie](#) remembers the first email he sent
 - Gus's letter appears in the [second issue of Wired Magazine](#), attributed to "Kesh"
- Dan Misener hacks his gloves with conductive thread so they work with his iPhone
 - [Steve Hoefler's](#) step-by-step guide at Instructables.com: [Making A Glove Work With A Touch Screen](#)
 - [Video](#) of [Leigh Honeywell](#) at [hacklab.to](#)
 - Spark's [mailing address](#)
- Letter: Jim Martin lost 20 pounds listening to podcasts
- Julie Ireton looks at Canadian copyright
- Nora mentions that [you can now lock Google's SafeSearch](#) ([video](#))
- Same as it never was: Hannah Classen heads to the roof to look at space colonies
- Nora mentions that [Google Street View added 9 Canadian cities](#)
- Craig Fahner waters his garden remotely with [#garden](#)
 - Interact with #garden through [twtrgrdn on Twitter](#)
- [Anand Giridharadas](#) on the age of metrics
 - NYT Currents: [Are Metrics Blinding Our Perception?](#)

This episode features [Creative Commons](#) music and sound effects:

- "acclimate" by [General Fuzz](#)
- "[Wadidyusay?](#)" by Zap Mama
- "[Good Morning](#)" by Pitx
- "koto" by airtone
- "[Star Trek Theme](#)" by RAC
- "Electron Map" by [Chad Crouch](#)

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Malcolm · 3 days ago

0

Gus Savoie sent his first email in 1993? I'd been sending email every day for 10 years by then. Yes, I've been online for 26 years and I still get the same email hoaxes, virus warnings, silly jokes that I got a quarter century ago. Sometimes it amazes me that I still use it at all.

I used to correspond with people all over the world. Today, most of my email is with local people, excepting my Grateful Dead list.

Finally, I'll just lament that Usenet is almost gone before most people ever heard of it or realized what an awesome resource it's been.

Reply

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Dwight · 2 days ago

0

Im not a regular listener, but if you keep doing shows on copyright you'll have my ears. Excellent.

Reply

[Report](#)



Russell McOrmond 71p · 2 days ago

+1

Copyright may not be sexy, but it does get quite interesting. This is especially true since most of the discussions have nothing to do with what could be recognise as copyright.

For instance, lets look at the Warner and Universal folks that were talking about layoffs. Does this have anything to do with copyright or copyright infringement? In my analysis, no. It has to do with how you started the story: the fact that people have other things they are spending their time and money on. This includes the growth of indy bands and labels who don't get included in the statistics the major labels abuse to claim that infringement is the cause for their lost revenues. It includes cellphone use (talking, not listening), video games (a major growth industry that could alone account for the dip in major label music), and so-on. It's not about copyright at all, just basic economic and common sense -- that is, as long as you don't live in the perpetual-motion non-science world of the copyright lobbies.

There is also a debate about who the 'thieves' are in the debate. For me, when you purchase something (a home, a phone, an audio/video device), as part of the transfer of ownership you get the keys to any locks. The most controversial aspect of recent legislation and proposals is the legalisation and legal protection of someone else (often a manufacturer) placing locks on devices which you (the legal owner) are not allowed to remove in order to place your own locks on what you own. While I don't recognise copyright infringement as theft (it is at most an unlawful reduction of property value http://www.digital-copyright.ca/Jefferson_Debate), I do think that what these major copyright holding lobbies are asking for is a form of theft <http://flora.ca/own> orders of magnitude more harmful than any amount of copyright infringement.

The short form is that since the early 1990's these companies have treated new technology as a threat that must be stopped any way they can. If you disagree with this extreme position, then you'll disagree with pretty much all their proposals.

How about ACTA and the "3 strikes" proposals? We would never take seriously a suggestion that we should cut off your electricity if you were claimed to be abusing your household appliances without any proof (no court oversight, etc). This is the type of thing being proposed around the Internet. That is -- if you are doing the least serious forms of copyright infringement (non-commercial sharing by citizens). If you are a commercial infringer, like many of the proponents who have been accused (and sometimes

found guilty) of copyright infringement many more than 3 times, then there is no real comparable punishment being contemplated.

Sorry -- but I'm not sure you captured the "two sides" of the debate, given the people documented on one side (Warner/Universal) are pretty extreme, while people like Geist and Murray are middle-ground supporters of copyright, creators and audiences. Given how extreme the one side is, you need to make up fictional characters who want to abolish copyright as well as making creativity illegal (jail-time for whistling a tune) in order to present a comparable "other side".

Reply

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Jim Martin · 1 day ago

0

I just have to say, Nora does a much better job reading my emails than I do!

Reply

[Report](#)

[We have to grow carrots too? < Educational Discourse](#)

[...] non-teachers who work in education, maybe you can do some of the gardening. I've heard, via Spark, that we can grow gardens using Twitter. Maybe if you could get together with the fitness and diet [...]



[Todd Sieling](#) · 13 hours ago

0

A very good survey of the copyright debate so far, which is no small feat. I do find the concluding idea, that finding a law that can apply to technologies not yet invented is almost impossible, to be pretty weak.

To take an extreme example, let's look at the law against murder. It doesn't matter what you use to do it, whether it's a gun from the last century or a death-ray from the next, the law still applies and it's clear to see how and why. To say that it's almost impossible to find a copyright law that applies to tech not yet invented is to buy into the label position that copyright must be bound up in the media that content is delivered in, and not how it's used which is what copyright is really about.

Reply

▼ [2 replies](#) · active less than 1 minute ago

[Report](#)



[Russell McOrmond](#) 71p · less than 1 minute ago

+1

"buy into the label position that copyright must be bound up in the media that content is delivered in, and not how it's used which is what copyright is really about."

Todd,

I keep being reminded of your comment over the last few days. Even though I've posted more than my fair share, I feel the need to add.

What you suggest is what copyright *should be*, but it is unfortunately not what it has been about thus far. Copyright is a law that specifies a specific set of activities and says that you need to get the permission from the copyright holder to do these activities. In some cases there is a compulsory license where you only need to pay, and not get permission.

This means that the law is dependant on the delivery mechanism, down to an insane level of details around what activities are done by anyone between the creator and the audience.

If it were a reasonable transaction between creators and audiences, buying a ringtone or clearing rights to play music on the radio would be a single simple payment.

What we have is collective societies <http://www.cb-cda.gc.ca/societies-societes/index-...> that form around specific activities, and that appear incapable of being aware of the bigger picture. This is why you have CMRRA on behalf of composers getting payment for the storage of a ringtone on your cellphone, and then SOCAN (allegedly on behalf of the same composers) demanding (and thus far getting) payment for the fact that some company had to communicate it to you for you to then store it. A reasonable person would call this double-dipping which is to the ultimate detriment of composers and a respect for copyright, but it is unfortunately the way copyright currently works.

Radio stations don't play music off vinyl any more, and want to store their libraries on a hard disk along with information about the music. Collective societies want to get yet another payment because this is a 'copy', even though the whole purpose is to be able to broadcast the music and pay the creators. All this excessive behaviour by collective societies does is make the system more complex, less people doing it, and thus ultimately less money to creators.

Some of the most extreme positions I read from the recent copyright consultation came from collective societies and their dependants, not from the Labels or other middle-men that people have come to love to hate. It was SOCAN (composer collective) that went as far as to wanting their submission to be secret.

A copyright law that applies to tech not yet invented? That would involve gutting the entire concept of copyright as it stands today (IE: regulation on specific activities) and starting from scratch. I'm all in favour of this, but don't expect it to happen any time soon.

Reply

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[Todd Sieling](#) · less than 1 minute ago

0

I agree Russell, that de-coupling content rights from the medium isn't likely to happen, and I admit I'm cynical about the reasons why (namely that there's money at stake, and that our cultural philosophy is sliding rapidly towards ubiquitous privatization).

But I don't think it's completely out of left field to have rights control separate from their mediums, as we do have, for now, protections for sampling and satirical works. In these cases the rights around use of the content has nothing to do with the medium, so I see those uses as a wedge to displace the outmoded framework of copyright.

It won't happen with the current rewriting of copyright, and I expect we'll lose the protections for sampling and satire in this round (again, sadly cynical) but I feel like those are better models for a way forward that doesn't have to be re-written for new technologies.

Reply

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[Russell McOrmond](#) 71p · less than 1 minute ago

+1

"(namely that there's money at stake, and that our cultural philosophy is sliding rapidly towards ubiquitous privatisation)"

It isn't so much about money, but who gets that money. If you think of the "Music industry" as if it were unified, then the reality is that they are throwing money away by driving away so many people who want to pay. They have set themselves up to be seen as disrespectful, and

thus disrespected.

What copyright has created is a nasty situation where the recording industry (a specialised banking sector formed back when recording/editing audio was expensive) are fighting to protect their historical control over music. The groups hurt the most are composers and performers (IE: other parts of the "music industry"), and only secondly music fans.

Changing copyright such that it wasn't so tied to specific narrow activities would wipe out the "recording industry" not because people would infringe more, but because it would become more obvious that they are redundant (and in the way) in the modern economy.

The trend I see is that the more control that various copyright holding intermediaries gain (and that is what the current rounds are all about), the less money flows to creators. Ideal would be if creators noticed this and separated themselves from the legacy intermediaries, but the cynical side of me thinks that commercial creativity will be wiped out completely before we have a chance to end this war and fix copyright.

Sampling & satire: These are under limits and exceptions to copyright (in some countries). These things aren't protected by copyright, but protected from copyright. It isn't that copyright isn't still tied to specific activities, but that these activities aren't prohibited by copyright when they fit some very specific/narrow criteria. It was only when doing one of these specific activities that Copyright was involved, and thus only then when we need an exception.

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Chris Parker · 9 hours ago

0

I found the segment on the age of metrics both fascinating and terrifying. As someone with a lot of technical hobbies (amateur radio, robotics, machining...), I find metrology (NOT meteorology!) interesting. Your guest, however, described a "if can do it, we should do it" horror story when he explained the company that uses metrics to fine tune your behaviour to maximize your productivity. I particularly found the "scientific" approach to raising a baby scary. Scheduling of things like the amount of time that a machine is running, or determining the optimal ordering of operations to make building a product cheaper is one thing, but a machine in a factory, nor are people in general. We are not static things that don't change; our experiences change us, and "scientifically" planning our actions I fear will filter out those very experiences that make us learn and become who we are. For example, minimizing the amount of crying during a roadtrip might lead you to install a dvd player for the back seat of the car, but how is that child going to fare when they grow up, and there isn't always an entertaining distraction to keep you occupied?

Reply [2 replies](#) · active 8 hours ago

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[NoraYoung](#) 69p · 8 hours ago

+1

I have to say, that's what I found most concerning, is the way metrics seem to colonize all other ways of thinking about a problem. I worry that substantive, ethical considerations, for instance, will look too fuzzy, so that we won't take them seriously. I hadn't really thought about the 'people change over time' aspect of this. Thank you.

Reply

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[Yatti420](#) · less than 1 minute ago

0

Ill help with the other side of the arguments.. CRIA IS BEING SUED FOR 6 BILLION!!!!
WOOOOOOHOOOOOOO!!!!..

Reply

[Report](#)



[Yatti420](#) · less than 1 minute ago

0

I couldn't edit my post.. So to all the music execs who are complaining about laying off jobs etc.. Maybe they should stop ripping off artists to the tune of 6 billion dollars.. If they are this bad off in the first place a new business model is a must..

Reply

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[Spark Ep. 94 « Matti Aleve](#)

[...] Spark Episode 94 they talk about sending their first email. It certainly brought back some fond memories of the [...]



Eric van Wesenbeeck · less than 1 minute ago

0

I can totally relate to Jim Martin's experience with podcasts. I have had the same evolution of listening to tons of music in past years but now, as podcasts are so widely available, I find myself listening almost exclusively to radio show podcasts on my iPod. Walking to and from work give me an hour of listening but also shovelling the driveway, at 3am when I can't get to sleep, sitting on an airplane, are all opportunities to enjoy the endless supply of very interesting programming that I would otherwise never have listened to.

Reply

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[Moon books and human space travel « A Little Library Blog](#)

[...] to my renewed space-fever, i was listening to the December podcasts from CBC's The Spark, and this one from early in the month has a segment about space colonies. Possibly related posts: (automatically [...])



[foci eredmények](#) · less than 1 minute ago

0

I haven't checked in here for some time as I thought it was getting boring, but the last handful of posts are really great quality so I guess I will add you back to my daily bloglist. You deserve it my friend. :)

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Host [Nora Young](#)

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